

25NWCV02137 25NWCV02137

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Case Number: 25NWCV02137 Hearing Date: September 11, 2026 Dept: D

JOHN DOE V. LONG BEACH

UNIFIED SCHOOL DISTRICT, ET AL.

CASE NO.: 25NWCV02137

HEARING: 09/11/2026 @ 9:30 a.m.

#16

TENTATIVE ORDER

Plaintiff John Doe's Motion for Leave to File Second

Amended Complaint is GRANTED. Plaintiff

shall file and serve an amended complaint within 10 days of this ruling.

Moving party to give notice.

Plaintiff John Doe (Plaintiff), a

minor (by and through his guardians ad litem Sukena Henson and Reginald Murphy),

moves for an order granting him leave to file a Second Amended Complaint (SAC),

which will allege an additional negligence cause of action against a new

defendant, Autism Behavior Consultants, Inc. (ABC). The motion is unopposed.

Background

On June 12, 2025, Plaintiff filed

this sexual assault action against Long Beach Unified School District (LBUSD)

and Does 1 through 25, inclusive.

On October 8, 2025, before any defendant served a response to the Complaint, Plaintiff filed his operative First Amended Complaint (FAC), asserting one cause of action for negligence against LBUSD and Does 1 through 25.

On October 22, 2025, LBUSD filed its Answer.

On August 12, 2026, Plaintiff filed the instant motion for leave to file a SAC adding a new cause of action for negligence and ABC as a defendant. Jury trial is set for June 28, 2027.

Legal Standard

“The court may ..., in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by [the Code of Civil Procedure].” (Code Civ. Proc., § 473, subd. (a)(1).)

California Rules of Court, rule

3.1324(a) states: “A motion to amend a pleading before trial must: ¶ (1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; ¶ (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and ¶ (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.”

“A separate declaration must accompany the motion and must specify: ¶ (1) The effect of the amendment; ¶ (2) Why the amendment is necessary and proper; ¶ (3) When the facts giving rise to the amended allegations were discovered; and ¶ (4) The reasons why the request for amendment was not made earlier.” (Cal. Rules of Court, rule 3.1324(b).)

“Courts must apply a policy of

liberality in permitting amendments at any stage of the proceeding, including during trial, when no prejudice to the opposing party is shown.... “However, “even if a good amendment is proposed in proper form, unwarranted delay in presenting it may—of itself—be a valid reason for denial.”” [Citations.]” (Duchrow v. Forrest (2013) 215 Cal.App.4th 1359, 1377.)

Analysis

The Court finds that Plaintiff has satisfied the requirements of California Rules of Court, rule 3.1324(a) by submitting a copy of the proposed SAC and stating that “[t]he proposed amendments are the additional cause of action for common law negligence, and the addition of defendant ABC, which are in paragraphs 3, paragraphs 9 through 11, and paragraphs 26 through 30 of the SAC” (Motion, p. 4:23-25; Declaration of Christopher F. Bostwick (Bostwick Decl.), ¶ 10; Exh. 1 – a copy of the SAC.)

Plaintiff’s counsel’s declaration

also satisfies rule 3.1324(b) by attesting to the following facts. “This case arises from the sexual assault of Plaintiff, a special needs student at Holmes Elementary School in [LBUSD], on September 26, 2024. At around 12:00 p.m., Plaintiff entered the boy’s restroom unattended, wherein a general education student sexually assaulted him. Plaintiff alleges that his assigned aide breached her duty of care by leaving Plaintiff unattended and unsupervised, and that the aide’s breach was a substantial factor causing the assault and Plaintiff’s resulting damages.” (Bostwick Decl. ¶ 4.) “Until recently, my client was informed and believed that the aide was an employee of LBUSD. On this basis, Plaintiff served LBUSD with a government claim for damages on LBUSD on January 15, 2025, to which LBUSD provided no response within 45 days of service. Plaintiff timely filed the instant lawsuit, alleging a single cause of

action for negligence against LBUSD pursuant to Government Code sections 815.6 and 815.2, as well as California Education Code section 44807.” (Bostwick Decl. ¶ 5.) “The facts giving rise to the amended allegations were discovered during ongoing discovery and investigation in this matter. On April 30, 2026, Counsel for LBUSD informed my office that the aide was an employee of Autism Behavior Consultants, Inc. (‘ABC’), a third party that

contracts with LBUSD to provide aides to students with Autism diagnoses.” (Bostwick Decl. ¶ 6.) “In an effort to resolve this matter

informally, my office served ABC with a formal demand letter on June 24, 2026, with 30 days to respond.” (Bostwick

Decl. ¶ 7.) “On July 22, 2026, counsel

for ABC contact my office requesting an additional four weeks in which to respond to my client’s demand, which would fall beyond the applicable statute of limitations. Therefore, it is necessary

that Plaintiff name ABC as a Defendant and preserve his right of action if they are unable or unwilling to resolve the matter informally.” (Bostwick Decl. ¶ 8.)

The Court finds it proper to

grant the motion. Plaintiff did not unduly delay in filing this motion after discovering the identity of the alleged aide’s employer. In addition, trial is several months away, and no opposition has been filed arguing that granting leave to amend would prejudice a party.

Conclusion

Based on the foregoing, Plaintiff

John Doe’s Motion for Leave to File Second Amended Complaint is GRANTED. Plaintiff shall file and serve an amended complaint within 10 days of this ruling.